SOURCE: MEPC.328(76).pdf
.3 the Baltic Sea area as defined in regulation 1.11.2 of Annex I of the present Convention; and

.4 the North Sea area as defined in regulation 1.14.6 of Annex V of the present Convention.
Marine diesel engines installed on a ship constructed prior to 1 January 2000

7.1 Notwithstanding paragraph 1.1.1 of this regulation, a marine diesel engine with a power output of more than 5,000 kW and a per cylinder displacement at or above 90 L installed
RESOLUTION MEPC.328(76)
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1997 TO AMEND THE INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973, AS MODIFIED BY THE PROTOCOL OF 1978 RELATING THERETO- 25 -

on a ship constructed on or after 1 January 1990 but prior to 1 January 2000 shall comply with the emission limits set forth in paragraph 7.4 of this regulation, provided that an approved method for that engine has been certified by an Administration of a Party and notification of such certification has been submitted to the Organization by the certifying Administration. Compliance with this paragraph shall be demonstrated through one of the following:

---CHUNK---

SOURCE: MEPC.328(76).pdf
such certification has been submitted to the Organization by the certifying Administration. Compliance with this paragraph shall be demonstrated through one of the following:

.1 installation of the certified approved method, as confirmed by a survey using the verification procedure specified in the approved method file, including appropriate notation on the ship's IAPP Certificate of the presence of the approved method; or

.2 certification of the engine confirming that it operates within the limits set forth in paragraph 3, 4, or 5.1.1 of this regulation and an appropriate notation of the engine certification on the ship's IAPP Certificate.

7.2 Paragraph 7.1 of this regulation shall apply no later than the first renewal survey that occurs 12 months or more after deposit of the notification in paragraph 7.1. If a shipowner of a ship on which an approved method is to be installed can demonstrate to the satisfaction of the Administration that the approved method was not commercially available despite best efforts to obtain it, then that approved method shall be installed on the ship no later than the

---CHUNK---

SOURCE: MEPC.328(76).pdf
the Administration that the approved method was not commercially available despite best efforts to obtain it, then that approved method shall be installed on the ship no later than the next annual survey of that ship that falls after the approved method is commercially available.

7.3 With regard to a marine diesel engine with a power output of more than 5,000 kW and a per cylinder displacement at or above 90 L installed on a ship constructed on or after 1 January 1990, but prior to 1 January 2000, the IAPP Certificate shall, for a marine diesel engine to which paragraph 7.1 of this regulation applies, indicate one of the following:

.1 an approved method has been applied pursuant to paragraph 7.1.1 of this regulation;

.2 the engine has been certified pursuant to paragraph 7.1.2 of this regulation;

.3 an approved method is not yet commercially available as described in paragraph 7.2 of this regulation; or

.4 an approved method is not applicable.

7.4 Subject to regulation 3 of this Annex, the operation of a marine diesel engine described in paragraph 7.1 of this regulation is prohibited, except when the emission of nitrogen oxides

---CHUNK---

SOURCE: MEPC.328(76).pdf
.4 an approved method is not applicable.

7.4 Subject to regulation 3 of this Annex, the operation of a marine diesel engine described in paragraph 7.1 of this regulation is prohibited, except when the emission of nitrogen oxides (calculated as the total weighted emission of NO2) from the engine is within the following limits, where n = rated engine speed (crankshaft revolutions per minute):

.1 17.0 g/kWh when n is less than 130 rpm;

.2 45 · n(0.2) g/kWh when n is 130 or more but less than 2,000 rpm; and

.3 9.8 g/kWh when n is 2,000 rpm or more.

7.5 Certification of an approved method shall be in accordance with chapter 7 of the revised NOx Technical Code 2008 and shall include verification:

.1 by the designer of the base marine diesel engine to which the approved method applies that the calculated effect of the approved method will not decrease engine rating by more than 1.0%, increase fuel consumption by more than 2.0% as measured according to the appropriate test cycle set forth
RESOLUTION MEPC.328(76)
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1997 TO AMEND THE INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS,

---CHUNK---

SOURCE: MEPC.328(76).pdf
more than 2.0% as measured according to the appropriate test cycle set forth
RESOLUTION MEPC.328(76)
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1997 TO AMEND THE INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS,
1973, AS MODIFIED BY THE PROTOCOL OF 1978 RELATING THERETO- 26 -

in the revised NOx Technical Code 2008, or adversely affect engine durability or reliability; and

.2 that the cost of the approved method is not excessive, which is determined

by a comparison of the amount of NOx reduced by the approved method to achieve the standard set forth in paragraph 7.4 of this regulation and the cost of purchasing and installing such approved method.

Certification

8 The revised NOx Technical Code 2008 shall be applied in the certification, testing and measurement procedures for the standards set forth in this regulation.

9 The procedures for determining NOx emissions set out in the revised NOx Technical Code 2008 are intended to be representative of the normal operation of the engine. Defeat devices and irrational emission control strategies undermine this intention and shall not be

---CHUNK---

SOURCE: MEPC.328(76).pdf
Code 2008 are intended to be representative of the normal operation of the engine. Defeat devices and irrational emission control strategies undermine this intention and shall not be allowed. This regulation shall not prevent the use of auxiliary control devices that are used to protect the engine and/or its ancillary equipment against operating conditions that could result in damage or failure or that are used to facilitate the starting of the engine.

Regulation 14
Sulphur oxides (SOx) and particulate matter

General requirements

1 The sulphur content of fuel oil used or carried for use on board a ship shall not exceed 0.50% m/m.

2 The worldwide average sulphur content of residual fuel oil supplied for use on board ships shall be monitored taking into account the guidelines developed by the Organization.

Requirements within emission control areas

3 For the purpose of this regulation, an emission control area shall be any sea area, including any port area, designated by the Organization in accordance with the criteria and procedures set forth i n appendix III to this Annex. The emission control areas under this regulation are:

---CHUNK---

SOURCE: MEPC.328(76).pdf
including any port area, designated by the Organization in accordance with the criteria and procedures set forth i n appendix III to this Annex. The emission control areas under this regulation are:

.1 the Baltic Sea area as defined in regulation 1.11.2 of Annex I of the present Convention;

.2 the North Sea area as defined in regulation 1.14.6 of Annex V of the present Convention;

.3 the North American Emission Control Area, which means the area described

by the coordinates provided in appendix VII to this Annex; and

.4 the United States Car ibbean Sea Emission Control Area, which means the area described by the coordinates provided in appendix VII to this Annex.

4 While a ship is operating within an emission control area, the sulphur content of fuel oil used on board that ship shall not exceed 0.10% m/m.

RESOLUTION MEPC.328(76)
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1997 TO AMEND THE INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973, AS MODIFIED BY THE PROTOCOL OF 1978 RELATING THERETO- 27 -

5 The sulphur content of fuel oil referred to in paragraph 1 and paragraph 4 of this

---CHUNK---

SOURCE: MEPC.328(76).pdf
INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973, AS MODIFIED BY THE PROTOCOL OF 1978 RELATING THERETO- 27 -

5 The sulphur content of fuel oil referred to in paragraph 1 and paragraph 4 of this regulation shall be documented by its supplier as required by regulation 18 of this Annex.